

## AR.2 Permit Application Checklist

What to have in hand before you file — starting with the approvals that apply whether or not anybody issues building permits where you are.

### Before you use this document

This is a process reference, not legal advice. Arkansas adopts one building code for the whole state and forbids your city or county from adopting a different one — and then requires nobody to enforce it on a house. The building permit, the inspections and the certificate of occupancy exist only where a city or a county chose to create them, and across most unincorporated Arkansas nobody did. What does not depend on that choice is the code itself, the onsite wastewater permit, and the trade licensing rules. Confirm every item with the office that will actually handle your parcel before you rely on it. Fees and code editions were read at their source in September 2026 and change on their own schedule.

## WHAT APPLIES WHEREVER YOU BUILD

Work this list first. None of it depends on whether your city or county issues building permits, and two items on it can stop a build outright.

### The list that does not care what county you are in

| Item                                     | What it is                                                                                                                                                                                                         | Authority                               |
|------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------|
| <b>Onsite wastewater permit</b>          | Arkansas Department of Health, through the Environmental Health Specialist at your county health unit. Required before the residence is built, and the design must be done by a licensed Designated Representative | Onsite Wastewater Rules § 4.3, § 4.10.1 |
| <b>The state plumbing code</b>           | Adopted as "minimum standards <b>statewide in application</b> ... to all types of buildings, private or public, <b>rural or urban</b> ." There is no rural exemption from the standard itself                      | § 17-38-103                             |
| <b>Plumbing permits and inspections</b>  | <b>Mandatory</b> — not optional — wherever a water, sewer or gas utility system exists. Such a body " <b>shall establish</b> a system of permits and inspections." Contrast the electrical rule below              | § 17-38-204(c)                          |
| <b>The 2026 National Electrical Code</b> | Adopted statewide as "the standard for the construction, installation, repair, and maintenance of electrical facilities." The <i>standard</i> binds you everywhere; the <i>permit</i> may not exist                | 17 CAR § 210-401                        |

## The list that does not care what county you are in

| Item                                 | What it is                                                                                                                                                                                                | Authority                       |
|--------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| <b>Well construction standards</b>   | If you drill, the technical rules bind you even when the license requirement does not — casing, grouting, sealing, disinfection, separation. <b>There is no well permit and no notice of intent</b>       | 17 CAR pt. 11<br>§ 17-50-107(a) |
| <b>Floodplain development permit</b> | Administered locally even where no building department exists — frequently by the county Office of Emergency Management. If you are outside the flood hazard area you may still need a document saying so | Local ordinance under the NFIP  |
| <b>Utility locate before digging</b> | Free, and the step before footings, septic, water line or driveway cut. Arkansas 811                                                                                                                      | ar811.org                       |

*Note the asymmetry, because it is real and it surprises people: Arkansas makes plumbing permitting **mandatory** where a utility system exists ("shall establish", § 17-38-204(c)) while making electrical permitting **optional** ("Any city or county may establish... a system of permits and inspections", § 17-28-305(c)). Where a utility system exists but no local plumbing inspector has been provided, the Department of Health "may take immediate charge and entire control of the plumbing inspection program" (§ 17-38-204(f)(1)).*

### One rule that can delete your septic system entirely

If a sanitary sewer is within **300 feet** of the point where the sewer leaves your building, and the connection can be made without crossing someone else's property, connection is mandatory and no onsite system may be used (Onsite Wastewater Rules § 4.1). Separately, a septic permit "shall be refused" where community sewerage is reasonably available or economically feasible (§ 14-236-113(b)). Measure this before you budget for a septic system.

## THE ONE SEQUENCE ARKANSAS FIXES IN RULE

Most of the order of an Arkansas build is yours to choose. One step is not. The onsite wastewater rule puts the septic approval **before the house**, in terms, and it does so independently of anything your county does:

### Onsite Wastewater Rules § 4.3

"A completed Onsite Wastewater System Permit Application and detailed plans and specifications... shall be submitted to and receive the approval of the Arkansas Department of Health or its Authorized Agent, **prior to construction of a building or residence.**"

That is also practical advice rather than mere paperwork. The absorption field and its reserve area have to fit, with their setbacks, on the same parcel as the house and the well — so the septic design constrains where the house can sit. Settle it before you fix the footprint, not after.

## THE SEPTIC PACKAGE, IN ORDER

**Work these in sequence — this is the longest pole on a rural build**

|                          | Item                                                                                                                                                                                                                                                                       | Date | Notes |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Engage a licensed <b>Designated Representative</b> . You cannot design the system yourself: Part I "shall be completed by a Designated Representative" (§ 4.10.1). Find one through the county health unit or the state's licensee lookup.<br><br>DR name _____ Date _____ |      |       |
| <input type="checkbox"/> | <b>Site and soil evaluation.</b> A minimum of <b>two soil pits</b> is required — one in the proposed primary absorption area, one in the secondary — and they "shall be left open for use by the Authorized Agent" (§ 7.1).<br><br>Date _____                              |      |       |
| <input type="checkbox"/> | Confirm you have BOTH a primary and a secondary (reserve) absorption area. Every design requires both, so a lot needs roughly twice the suitable soil area buyers expect (§ 4.2, § 7.1).                                                                                   |      |       |
| <input type="checkbox"/> | Note which evaluation was used: Arkansas rates soil morphology first, and a percolation test is an option rather than the default (§ 8.5). No absorption system may be installed in fill (§ 7.1).                                                                          |      |       |
| <input type="checkbox"/> | <b>Part I — Permit for Construction</b> issued by the Environmental Health Specialist. Valid one year; must be revalidated if older (§ 4.9).<br><br>Permit no. _____ Issued _____                                                                                          |      |       |
| <input type="checkbox"/> | Notify the Authorized Agent <b>at least 24 hours</b> before starting work (§ 4.7).<br><br>Date notified _____                                                                                                                                                              |      |       |
| <input type="checkbox"/> | <b>Part II — installation inspection.</b> Documentation reaches the local health unit within 5 days (§ 4.10.2).<br><br>Date _____ Result _____                                                                                                                             |      |       |
| <input type="checkbox"/> | <b>Part III — Permit for Operation.</b> "The system shall not be used until the Permit for Operation is issued" (§ 4.10.3).<br><br>Issued _____                                                                                                                            |      |       |

## Septic plan-review fee — one of the few figures Arkansas publishes

| Conditioned structure size      | Fee   |
|---------------------------------|-------|
| 1,500 sq ft or less             | \$30  |
| Over 1,500 up to 2,000 sq ft    | \$45  |
| Over 2,000 up to 3,000 sq ft    | \$90  |
| Over 3,000 up to 4,000 sq ft    | \$120 |
| Over 4,000 sq ft                | \$150 |
| Alteration, repair or extension | \$30  |

*Onsite Wastewater Rules § 4.9.1. Square footage excludes garages, carports and porches (§ 4.9.2.1). A fee waiver exists for low-income applicants under Act 725 of 2021 (§ 3.5 to § 3.6). Designated Representative and installer licenses are \$100 a year (§ 13.1, § 14).*

### The 10-acre exemption — real, current, and missing from the rule book

Ark. Code Ann. § 14-236-104(c): **"The requirements of this chapter shall not apply to any individual sewage disposal system or alternate and experimental system which is situated on a tract of land ten (10) acres or larger, in which the field line or sewage disposal line is no closer than two hundred feet (200') to the property line."**

**Both conditions have to be met.** Ten acres or more, *and* every part of the system at least 200 feet from every property line — the Department's own published guidance adds **"including roads"**, and says the exemption applies to a single residence. On a square ten-acre tract that leaves an envelope of roughly 260 feet a side. On a long narrow ten acres it may be geometrically impossible.

**Why your county health unit may never have heard of it:** the exemption lives only in the statute. It is not restated anywhere in the 2024 rule — searching the rule for "ten (10) acres" or "two hundred feet" finds nothing. Cite the statute, not the rule.

**What it does not do.** It does not license a bad system. The Department may still act where a system is a health hazard or a nuisance (§ 14-236-104(b)), and the state's own guidance says the owner must still install and operate it to meet state requirements. A municipality may impose stricter local rules (§ 14-236-105). And an unpermitted system is a real problem at resale, appraisal and mortgage underwriting — which is a good reason to permit one anyway.

## THE CODE EDITIONS ACTUALLY IN FORCE

### What binds a house in Arkansas

| Trade                                 | Code and edition                                                                                                                                                          | Effective / cite    |
|---------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|
| <b>Building — one- and two-family</b> | Arkansas Fire Prevention Code, 2021 Edition, <b>Volume III</b> — the 2021 International Residential Code with Arkansas amendments                                         | 1 Jan 2023          |
| <b>Building — other</b>               | AFPC Volume II — 2021 International Building Code                                                                                                                         | 1 Jan 2023          |
| <b>Fire</b>                           | AFPC Volume I — 2021 International Fire Code                                                                                                                              | 1 Jan 2023          |
| <b>Electrical</b>                     | <b>2026 National Electrical Code</b> (NFPA 70), adopted by the Board of Electrical Examiners with Arkansas amendments — see below                                         | 17 CAR<br>§ 210-401 |
| <b>Plumbing</b>                       | Arkansas State Plumbing Code. The AFPC deletes the IRC plumbing chapters outright and points here                                                                         | § 17-38-103         |
| <b>Fuel gas</b>                       | Arkansas State Gas Code. IRC Chapter 24 deleted in its entirety                                                                                                           | AFPC Vol. III       |
| <b>Mechanical</b>                     | "the mechanical code for Arkansas", per the AFPC's own cross-reference table                                                                                              | AFPC Vol. III       |
| <b>Energy</b>                         | Arkansas Energy Code. IRC Chapter 11 is deleted in its entirety and replaced by a pointer. <b>Confirm the current edition with your jurisdiction</b> — see the note below | AFPC Vol. III       |

The Arkansas Fire Prevention Code, 2021 Edition is state rule 015.01.22 Ark. Code R. 005, effective 1 January 2023, and reads free at [codes.iccsafe.org/codes/arkansas](https://codes.iccsafe.org/codes/arkansas). **We have deliberately not printed an Arkansas Energy Code edition.** The figure repeated across the web is a 2009 IECC base, but no current adopting document or agency landing page could be verified in September 2026 — and a wrong insulation table is worse than a blank one. Ask your building official, or the Department of Energy and Environment, and write the answer on the line below.

### Confirm the two editions this kit will not guess at

|                          | Item                                                                                                                                                                         | Date | Notes |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Arkansas Energy Code edition in force for my build, and who told me:<br>Edition _____ Source _____                                                                           |      |       |
| <input type="checkbox"/> | Whether my jurisdiction has adopted anything <b>more stringent</b> than the AFPC, which it may do — but only by amending the AFPC itself (Vol. I § 101.2.2):<br>Answer _____ |      |       |

## WHAT ARKANSAS DELETED FROM THE RESIDENTIAL CODE

This table is worth more than it looks. Arkansas struck whole blocks out of the 2021 IRC and replaced them with pointers to separate Arkansas codes. **If you quote an IRC chapter number from a national source without checking this list, you can print a requirement that does not exist in Arkansas — or miss one that does.**

### Struck from AFPC Volume III

| IRC content                     | Arkansas treatment                                                                                                                                                |
|---------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Chapter 11 — Energy Efficiency  | "Deleted in its entirety. Refer to the Arkansas Energy Code."                                                                                                     |
| Chapter 24 — Fuel Gas           | "Deleted in its entirety. Refer to the Arkansas State Gas Code."                                                                                                  |
| Chapters 25–33 — all plumbing   | "Deleted in its entirety. Refer to the Arkansas State Plumbing Code."                                                                                             |
| Chapters 34–43 — all electrical | "Delete Chapter and refer to the National Electrical Code... as adopted by the Arkansas Board of Electrical Examiners."                                           |
| <b>Every appendix</b>           | "Deleted in its entirety." § R102.5 confirms: appendices "are NOT adopted by the State of Arkansas and shall not apply <b>unless adopted by local ordinance</b> " |

### The appendix deletion has teeth if you are building anything unusual

Because every appendix is struck, Arkansas has **not** adopted the IRC appendices for **tiny houses**, strawbale, cob, light straw-clay, 3D-printed construction, solar-ready provisions, radon control, or private sewage disposal. There is no state code path for those methods — a local jurisdiction would have to adopt the appendix by ordinance. If you are planning an alternative-construction build, that is the conversation to have with your building official before you draw anything.

## THE 2026 NEC — AND THE PARTS ARKANSAS REWROTE

Arkansas is on a **newer** electrical code than most of the country, not an older one. The Board of Electrical Examiners "adopts and incorporates herein the National Electrical Code, **2026 edition**," and makes it "the standard for the construction, installation, repair, and maintenance of electrical facilities and the performance of electrical work." But it did not adopt it clean — and the amendments land squarely on things you will wire in a kitchen and a laundry.

### Arkansas amendments to the 2026 NEC, in 17 CAR § 210-401

| What                                | What Arkansas says                                                                                                                                                                         | Cite            |
|-------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|
| <b>AFCI and GFCI over 130 volts</b> | "shall <b>not</b> be required on dwelling units circuits over 130 volts, except for the requirements in Article 680 and 682" — that is, except pools, spas and similar water installations | § 210-401(b)(2) |

## Arkansas amendments to the 2026 NEC, in 17 CAR § 210-401

| What                                    | What Arkansas says                                                                                                                                                                                                                                                                                              | Cite                |
|-----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|
| <b>Laundry areas</b>                    | AFCI/GFCI "shall not apply" in a dwelling unit laundry area — <b>except</b> for convenience outlets within <b>six feet</b> of a sink                                                                                                                                                                            | § 210-401(b)(3)(A)  |
| <b>Refrigerator, microwave</b>          | AFCI/GFCI "shall not apply" to a refrigerator or microwave appliance within a dwelling unit                                                                                                                                                                                                                     | § 210-401(b)(3)(B)  |
| <b>Island and peninsula receptacles</b> | At least one receptacle outlet within the island or peninsula for the first <b>9 sq ft</b> of countertop or work surface, one more for each additional <b>18 sq ft</b> , and at least one within <b>two feet</b> of the outer end of a peninsula. A peninsula is measured from the connected perpendicular wall | § 210-401(b)(4),(5) |

Read from the Board of Electrical Examiners' own published administrative rules, 17 CAR Part 210, September 2026. Two further points from the same section: the Board also adopts ANSI/NECA 1-2023, Standard Practices for Good Workmanship in Electrical Contracting, as the workmanship standard (§ 210-401(e)); and the adoption "does not include any later amendments or editions of the standards incorporated by reference" (§ 210-401(f)), so a newer NEC does not take effect in Arkansas until the Board adopts it after notice and hearing. **Confirm the edition before you buy a code book** — this is the item in the kit most likely to move.

## STORMWATER — THE ONE-ACRE TEST

Most single house sites fall below the threshold and need nothing. Run the test rather than assuming, because the acre counts **total disturbance** — house, driveway, septic field, pad and any pond — and because a lot inside a larger development can be swept in by the common-plan rule even when your own disturbance is under an acre.

## Arkansas construction general permit ARR150000

| Total disturbed area                                     | What it means for you                                                                                          |
|----------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| Under 1 acre disturbed, not part of a larger common plan | <b>No permit.</b> Below the threshold                                                                          |
| 1 acre up to 5 acres                                     | Automatic coverage under the construction general permit; required documents posted on site before work begins |
| 5 acres or more                                          | Notice of Intent filed through the state e-filing system                                                       |

Permit ARR150000, issued by the Division of Environmental Quality within the Arkansas Department of Energy and Environment. **A version boundary falls inside this kit's first year:** the permit effective 1 November 2021 expires 31 October 2026, and the reissued permit runs 1 November 2026 to 31 October 2031. Check which one governs the date you break ground. Note also that the agency is now the Division of Environmental Quality, not the former Arkansas Department of Environmental Quality, though its documents and web address still carry the old name.

## IF A BUILDING PERMIT DOES EXIST WHERE YOU ARE

Arkansas cities set their own application requirements and their own fees by ordinance, and both move. Rather than print figures that will be wrong by the time you read them, here is the list to take to the counter — and room to write down what they actually tell you.

**Ask the permit counter for each of these, and write the answer**

|                          | Item                                                                                                                                         | Date | Notes |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Application form, and whether an owner-builder may sign it<br>Answer _____                                                                   |      |       |
| <input type="checkbox"/> | Plan requirements — how many sets, what scale, whether a sealed design is required<br>Answer _____                                           |      |       |
| <input type="checkbox"/> | Site plan requirements and the setbacks that apply to my lot, in writing<br>Front _____ Rear _____ Sides _____                               |      |       |
| <input type="checkbox"/> | Building permit fee and how it is calculated<br>Fee _____ Basis _____                                                                        |      |       |
| <input type="checkbox"/> | Plan review fee<br>Fee _____                                                                                                                 |      |       |
| <input type="checkbox"/> | Separate trade permits — which of electrical, plumbing, mechanical and gas this office issues, and which come from elsewhere<br>Answer _____ |      |       |
| <input type="checkbox"/> | Whether the office requires the ADH septic permit before it will issue the building permit<br>Answer _____                                   |      |       |
| <input type="checkbox"/> | Impact, tap, meter and connection fees<br>Total _____ What for _____                                                                         |      |       |
| <input type="checkbox"/> | Certificate of occupancy — whether one is issued, and what it requires<br>Answer _____                                                       |      |       |



**Ask the permit counter for each of these, and write the answer**

|                          | Item                                                                                                                          | Date | Notes |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Whether a homeowner may pull trade permits, and any competency demonstration required under § 17-28-305(b)(2)<br>Answer _____ |      |       |

**PERMIT RECORD — FILL THIS IN AS EACH ONE ISSUES****Every approval on this build**

|                          | Item                                                                                   | Date | Notes |
|--------------------------|----------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Onsite wastewater — Permit for Construction (Part I)<br>No. _____ Issued _____         |      |       |
| <input type="checkbox"/> | Onsite wastewater — Permit for Operation (Part III)<br>No. _____ Issued _____          |      |       |
| <input type="checkbox"/> | Well construction report, if a well was drilled — demand your copy<br>Date filed _____ |      |       |
| <input type="checkbox"/> | Floodplain development permit, or exemption certificate<br>No. _____ Issued _____      |      |       |
| <input type="checkbox"/> | Driveway or access permit — state highway or county road<br>Issued by _____ Date _____ |      |       |
| <input type="checkbox"/> | 911 address assignment<br>Address _____ Date _____                                     |      |       |
| <input type="checkbox"/> | Building permit, if one exists here<br>No. _____ Issued _____                          |      |       |
| <input type="checkbox"/> | Electrical permit, if one exists here<br>No. _____ Issued _____                        |      |       |

**Every approval on this build**

|                          | Item                                                                               | Date | Notes |
|--------------------------|------------------------------------------------------------------------------------|------|-------|
| <input type="checkbox"/> | Plumbing permit<br>No. _____ Issued _____                                          |      |       |
| <input type="checkbox"/> | Mechanical / gas permit<br>No. _____ Issued _____                                  |      |       |
| <input type="checkbox"/> | Stormwater coverage, if the site disturbs an acre or more<br>Ref. _____ Date _____ |      |       |
| <input type="checkbox"/> | Certificate of occupancy, if one is issued here<br>No. _____ Issued _____          |      |       |

Everything cited here is free to read, in three places. Statutes (**Ark. Code Ann. § 14-56-202**) are at **arkleg.state.ar.us** under Arkansas Code — search the section number; the site hands off to a free Lexis viewer, so the address is not worth bookmarking. Agency rules are at **codeofarrules.arkansas.gov**, by Title: **012** Public Safety holds the Fire Prevention Code, **007** Health the wastewater rules. The building code reads free at **codes.iccsafe.org/codes/arkansas** — Volume III is residential. **One warning:** Act 841 of 2023 moved the State Fire Marshal out of the Arkansas State Police and repealed most of §§ 12-13-102 to 12-13-119, re-enacting those duties at **§ 20-22-1009**. Guides written before 2023 still cite the repealed sections. Read September 2026.